

No mandamus for a new connection without a prescribed Supply Code application

High Court of Judicature at Allahabad · Division Bench · 11 January 2017 · WRIT - C No. 724 of 2017 · **Writ dismissed; mandamus for new connection refused**

HEADNOTE

A Division Bench of the Allahabad High Court dismissed a writ seeking a new electricity connection in the petitioner's name for a house he had purchased. Counsel for the licensee informed the Court that no application had been moved in the prescribed format under the U.P. Electricity Supply Code, 2005. Holding that the Electricity Act, 2003 read with the Supply Code is a self-contained code, the Court refused mandamus and left the petitioner free to apply in the prescribed manner, to be dealt with on the parameters for grant of connection.

FACTUAL SUMMARY

Ram Vishal alias Vishal Prasad alias Vishal Kesarwani filed a writ in the Allahabad High Court seeking an electricity connection in his name for a house he had purchased. On the hearing, counsel for the distribution licensee informed the Court that the petitioner had not submitted any application in the prescribed format under the U.P. Electricity Supply Code, 2005. The petition was considered on that admitted position, without examination of title or the merits of a connection.

REUSABLE CONSTRUCTIONS

1. No writ of mandamus can issue directing a licensee to give a new electricity connection where the applicant has not moved an application in the prescribed format under the U.P. Electricity Supply Code, 2005. ¶ 1
2. The Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005 is a self-contained code providing a full mechanism for claiming a connection after fulfilling the stipulated formalities. ¶ 1

HOLDING-UNITS

INTERPLAY · UP-2005::4

new-connection-prescribed-application

HOLDING

The Electricity Act, 2003 (styled in the order as the U.P. Electricity Act, 2003) read with the U.P. Electricity Supply Code, 2005 is a self-contained code with a full mechanism for claiming a new connection after fulfilling the prescribed formalities. Where the petitioner has not applied in the prescribed format, the Court will not mandamus the licensee to give a connection. The writ is dismissed, with liberty to apply; any such application is to be dealt with on the parameters laid down for grant of connection. ¶ 1

FLAG Order cites the Supply Code 2005 prescribed-format application and 'U.P. Electricity Act, 2003' without a clause or section number; Clause 4 is the new-connection application chapter.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW CONNECTION IN HIS NAME FOR THE PURCHASED HOUSE

Merits of grant were not examined; no application had been filed in the prescribed format. ¶ 1

